

These two writ petition arising out of same cause of action have been together and since the points for determination of those matters are identical

and those are taken up for hearing analogously and disposed of by the single judgment.

In Writ Petition 6331 of 2023

In this application under Article 102 of the Constitution of the People's Republic of Bangladesh, a Rule Nisi was issued calling upon the respondents to show cause as to why the impugned proceedings in connection with L.A case no. 01/2021-2022 and the Award notice being Jari No. 4736 dated 10.05.2023 issued by the Respondent no.5 under section 8(3)(Ka) of the Acquisition and requisition of the immovable Property Act, 2017 shall not be declared to have been proceeded without lawful authority and is of no legal effect and also as to why the respondent shall not be directed to disposed of the representation dated 14.05.2023 filed by the petitioner before the office of the respondent no.3 which was received on 14.05.2023 in connection with L.A. case no. 01/2021-2022, in accordance with law and/or pass such other or further order or orders passed as to this Court may seem fit and proper.

In Writ Petition no. 6332 of 2023

In this application under Article 102 of the Constitution of the People's Republic of Bangladesh, a Rule Nisi was issued calling upon the respondents to show cause as to why the impugned proceedings in connection with L.A case no. 01/2021-2022 and the Award notice being Jari No. 4737 dated 10.05.2023 issued by the Respondent no.5 under section 8(3)(Ka) of the Acquisition and requisition of the immovable Property Act, 2017 shall not be declared to have been proceeded without lawful authority and is of no legal effect and also as to why the respondent shall not be directed to disposed of the representation dated 14.05.2023 filed by the petitioner before the office of the respondent no.3 which was received on 14.05.2023 in connection with L.A. case no. 01/2021-

2022, in accordance with law and/or pass such other or further order or orders passed as to this Court may seem fit and proper.

The above Writ Petitions are filed before this Court challenging the proceedings of L.A.Case No.01/2021-2022 being infirmity and illegality for not fixed the purpose of acquisition and requisition as a whole as we as impugning Jari no 4737 dated 10.05.2023 issued by the Respondent no. 5 under section 8 (3) (ka) of the Immovable property and acquisition and Possession Act, 2017 in L.A Case no 01/2021-2022 by mentioning very lower prices of Market Value at the applicable time and along with Direction upon the respondent No. 3 to dispose of the letter dated 14.05.2023 filed by the petitioner before the office of the respondent no. 3 which is received on 14.05.2023 under the Preview of L.A Case no 01/2021-2022 of the Petitioner in accordance with law for ends of Justice.

Brief facts necessary for the disposal of the writ petition No. 6331 of 2023 are as follows:-

The petition is the owner of property mentioned in the writ petition who is the owner of the property for one Abdul Quddus Akhando, son of Jesartullah Akhando, of village Jinassor, Gaibandha Sadar, District-Gaibandha by way of B.R.S record and the scheduled property is situated at B.R.S Khatian no 35, B.R.S Dag no. 102 and measuring an area of acquisitioned land 0.4700 acre The land in question is situated at the side of Highway and opposite side of Gaibandha Jail and the nature is Dola. The Petitioner is owning and possessing this land for long years. His chain of title has never been questioned. His chain of title is undisputed and continuous. The respondent nos. 5, 8 & 9 issued notice under section 4 of the

Acquisition by mentioning purpose of construction of the Permanent Office of the National Security Intelligence for the public need and Public interest upon the land in question of the petitioner and other land. The petitioner, there after, received a notice dated 27.09.2021 under section 7 (1) of the Acquisition and Requisition Act ,2017 wherein purpose of acquisition mentioned for the former connecting Roads Project-II to 4 lane upgradation project of Alenga Hatikumrul Rangpur High Way. The petitioner was present at the fixed date and submitted relevant documents along with some sale deed as per law. Thereafter, the respondent no. 5,8 & 9 issued notice vide memo dated 10.05.2023 under section 8(3)(ka) of the Acquisition and Requisition of Immovable Property Act, 2017 upon the petitioner. Being aggrieved, the said notice the petitioner filed an application dated 14.05.2023 for correction the said notice dated 10.05.2023 and added the price as per law and market value as well.

Short facts in writ petition no. 6332 of 2023, the petition is the owner and possessor of the land in question as heirs. The land as described in the schedule has belong to R .S. recorded owner Nayabi Nesa Bibi wife of Ayen Uddin Sheikh who is the predecessor of the petitioner (Grand Mother) . After her death, her heirs are possessing and owning the scheduled land by paying rent to Government exchequer. It is pertinent to mention that the said land was recorded in the name of her heirs under B.R.S (B.R.S Khatian) 301and Khatian no.302. The scheduled property is situated at B.R.S Khatian no 35 , B.R.S Dag no. 102 and measuring an area of acquisitioned land 0.4700 acre (Holding No.304, Resurvey No.401, Sadar,J.L. No.58(B.R.S), Mouza : Khamar Tenggarjani ,Police

Station:Gaibandha Sadar, District Gaibandha, Division -Rangpur by way of B.R.S record.)The scheduled property is situated at B.R.S Khatian no 140 , B.R.S Dag no. 103 and measuring amounts to acquisitioned land 0.4700 acre.

Thereafter, the petitioner received a notice dated 27.09.2021 under section 7 (1) of the Acquisition and Requisition Act ,2017 wherein purpose of acquisition mentioned for the former connecting Roads Project-II to 4 lane upgradation project of Alenga Hatikumrul Rangpur High Way. The petitioner was present at the fixed date and submitted relevant documents along with some sale deed as per law.

Thereafter, the respondent nos. 5 ,8 & 9 issued notice vide Jari memo no 4736 dated 10.05.2023 and Jari Memo No. 4737 dated 10.05.2023 under section 8 (3) (ka) of the Acquisition and Requisition of Immovable Property Act, 2017 upon the petitioners respectively.

The petitioner, being dissatisfied with the Notice vide Jari no 4737 dated 10.05.2023 under section 8 (3) (ka) of the Acquisition and Requisition of Immovable Property Act, 2017 filed an application dated 14.05.2023 for correction the said notice and added the price as per law and market value as well .

The respondent was served the notice dated 11.08.2021 upon the petitioner with two conditions under section 4 of the immovable property acquisition and possession Ain, 2017 in L.A Case no 01/2021-2022 for establishing the District office of the National Security Intelligence Directorate , District i Gaibandha.

That the respondent was served the notice dated 27.09.2021 upon the petitioner under section 7 of the Acquisition and Requisition act ১৯৮০ in L.A Case no 01/2021-2022 for construction 4 lane National High way. It is evident that the purpose of the previous notice is totally changed and new purpose is mentioned.

That finally the respondent was served this Notice upon the petitioner on 10.05.2023 by mentioning very lower price in comparing the market value at the applicable time . In the notice the price of the land in question is fixed 37,16,854 taka per acre which is very low , contrary to market value and violation of the provision of law as well. It is pertinent to state that nothing was mentioned for which purpose it will use .

That in the mean time, already a couple of days have been passed , but the respondent has not been given with any corrected notice to the petitioner for receiving remuneration or honorium and other allowances in L.A Case no . 01/2021-2022 in accordance with law. In response to the same , nothing was issued by the respondent no. 3 for serving upon the Petitioner . Subsequently , 10 days have already been passed , but no step has been taken on the part of the respondents to give the petitioner his entitlement and facilities in the L.A Case no . 01/2021-2022 under the law .

Mr. M.K. Rahman, Senior Advocate along with Ms. Amatul Karim, the learned advocate for petitioner submits that proceeding of L.A.Case No. 01/2021-2022 is illegal, void and not sustainable in law as the purpose of acquisition is not fixed which is evident from the notices under section 4,7 and 8(3) (ka) of the [ভাৱৰ সৰ্ব্বাধিকৃত অধিষ্টিত্ব ওৰ্ডাৰ আইন, ২০১৭](#) (Act No. 21 of 2017) issued thereunder (Annexure-B, C and D) as well as the

Compensation has made without complying with the provisions of section 9 (1)(Ka)of the [গণপ্রজাতন্ত্রী অধিবেশন ও সংসদপাল আইন, ২০১৭](#)for which the impugned proceedings done without authority and hence same is liable to be declared without lawful authority and is of no legal effect. He further submitted that the petitioner is law abiding citizen of the country and his families land has acquired vide LA Case no 01/2021-2022 with two purpose which is evident from notices under section 4 and 7 of the Acquisition and Requisition of Immovable Property Act, 2017 (Act No.21 of 2017) issued thereunder (Annexure B and C to writ petition). No corrected notice had served upon the petitioner. That the authority concerned has fixed the price of land in question at 37,16,854.00/- Tk. per acre on 10.05.2023 which is very low in comparing to market price (Annexure- D). The respondent no. 3 has failed to fix the price of the land in question in accordance to section 9 of the Acquisition and Requisition of Immoveable Property Act, 2017.

He further submitted that earlier the respondent no. 3 i.e. the Deputy Commissioner, Gaibandha fixed price value of the same class of land at 3,00,68,966 Tk per acre situated at Mouza-Khamar Tengarejani , J.L.- 58, Upazila-Gaibandha Sadar, District- Gaibandha, nature of the land -dola under L.A.Case No. 03/2018-2019. But in this case the Deputy Commissioner fixed the land price at 37,16,854.00/- Tk under L. A. Case No.01/2021-2022. It is pertinent to mention that the land is belong to same mouza ,in nature of land is Dola.

He further submitted that the petitioner filed application to the respondent no.3 for fixing the price of the land as per market value of similar description and with similar advantages in the vicinity during the twelve months of preceding the date of publication on notice (Annexure -E to writ petition). The petitioner categorically mentioned that his application that the price of his land fixed at 37,168/- per decimal on only by the authority concern under L.A. Case No.01/2021-2022 which are very low as per market value. He mentioned his application that one of deed dated 29.06.2021 shows that price of 9 decimal land sold out at 35,00000/- (Thirty five lacs taka) on and another deed dated 29.06.2021 shows that 3 decimal land sold out at 20,00000/- (Twenty lacs taka). This piece of land is the only property of the petitioner. The land in question is situated on the Dhaka - Gaibandha Highway. It is a general trend that the price of land has been increasing day by day. But respondent no.3 miserably lowered the value of the acquired land without considering the land having similar description and with similar advantages in the vicinity during the twelve months preceding the date of publication on notice.

He again submitted that the Market Price Fixing Committee ,Gaibandha presided over by District Registrar, Gaibandha has fixed per decimal land located at Khamar Tengarjani mouza ,Gaibandha Sadar,

Gaibandha at 40,815/- taka for the 2017-2018. The Land Office of Gaibandha Sadar informed that this price is applicable for the year of 2019 to 2022. The Market Price Fixing Committee, Gaibandha presided over by District Registrar, Gaibandha has fixed per decimal land located at Khamar Tengarjani mouza, Gaibandha Sadar, Gaibandha at 46150 taka for the 2023-2024. The price of per decimal land fixed by the Committee is the lowest price. No lowest price compared to the fixed price of that land is acceptable in the eye of law. But there is no limit fixed for the highest price. But in the L.A Case No.01/2021-2022 the land price has fixed at 37,168/- taka which is lower than the lowest price of that land 40,815/- taka fixed by the Market Price Fixing Committee, Gaibandha presided over by District Registrar, Gaibandha.

[He further submitted that](#) It is settled principle of our apex court that the valuing authority should take note of any specific feature or potentiality which the property under acquisition may possess, because the market value of such property shall be average value of the properties of a similar description and having similar description and having similar advantages in the vicinity during particular time (Province of East Pakistan (Now Bangladesh) VS. Fazlur Rahman 26 DLR 255. Hence he prayed for make the rule absolute and thereby given the opportunity to get actual price of their land as per section 9 (1) (k) of the Act.

Per contra, Mr. Samarendra Nath Biswas, the learned Deputy attorney General opposes the rule by filing affidavit in opposition and submits that the acquiring authority decided to acquire the land in question and as per the provision of section 4 (1) of the [ভাৱৰ সৰু বি অধিবিহণ ও বিমদখল আইন, ২০১৭](#). [The](#) notice was served on 11.08.2021 and a joint inspection was made by the acquiring authority. After compilation of the procedure under section 4 of the Act notice were sent to the concerned persons under provision of section 7 of the Act. Section 9 (1) of the Act provides the procedure to determine the compensation of the acquired land by the acquiring authority and the proviso of section 9 (1) (ka) of the Act provides to consider the price of earlier 12 months of land of the same vicinity having equal class and equal facility and in the instant case the notice under section 04 of the Act was issued on 11.08.2021 and the acquiring authority collected the price of earlier 12 month of the land from registry office and thereafter fixed the price of acquire land and prepared the award and subsequently issued notice under section 8 of the Act. The authority concerned made award on sale deed executed between 16.08.2020 to 14.03.2021 the price of per decimal of land mention at taka 37,169.00 but in respect of another two deeds executed on 29.06.2021 i.e. after 3 months 15 days the price of per decimal of land was shown at Tk. 3,88,888.89 and TK. 6,66,666.67 respectively which was done with an malafide intention. He further submitted that the claimed by the petitioner are not the real price of the acquired land and two deeds were execute collusively and the acquiring authority thereby refused to consider the price as mentioned in the said two deeds and prepared the award under section 8 of the Act. He further submitted that the petitioner can agitated his

grievance before the arbitrator appointed under section 29 of the Act and section 36 of the provides to file appeal against the award fixed by the arbitrator, But in the instant writ petition and consequently the Rule issued in the instant writ petition may kindly be discharged.

It also noted that the opinion given by the sub-registrar, Gaibandha Sadar vide its memo no 63 dated 13.06.2022 should be considered in preparing award that it is the duty of Land office to supervise the value of land per decimal not be lower comparing the fixed price of the Bazar Price Fixing Committee. Considering that issue he registered two deed no 4635 dated 29.06.2021 and deed no 4636 dated 29.06.2021. He also informed that though there are provision for lowest price but there are no provision for fixing highest price limit for per decimal land . It is bear in mind that the land should be same and similar advantage of land . The land mentioned in the table in serial nos. 1-4 are not having the similar advantage. Only the lands mentioned in serial nos. 5 and 6 are same and having similar advantage. In that premises, the defendant should refixed the award as per law.

A detailed affidavit in opposition has been filed by the respondent No.3 wherein a preliminary question was raised that the writ petition is not maintainable in as much as a constitutional remedy under section 102 of the constitution cannot be invoked when there is an effective mechanism

provided for the remedy sought. It appears that since the authority concerned made award a sale deed executed between before 16.08.2020 to 14.03.2021. Admittedly, the petitioner has not invoked the said remedy. This court, in the present case, therefore, ought not to have embarked upon a decision of the writ petition on merits, and should have refused to exercise its special Jurisdiction on the ground of alternative remedy before appointment of arbitrator.

It is stated that there are forums for agitating their remedy under section 30 [before the arbitrator appointed under section 29 of the Act and section 36 of the provision to file appeal against the award fixed by the arbitrator. Since both the petitioner filed Arbitration case being Misc Case being No.07 of 2024 \(Arbitration\) and Misc Case being No.06 of 2024 before the Learned Arbitrator Tribunal ,Gaibandha, \(the Learned Joint District Judge 1st Court, Gaibandha\) on 29.01.2024 the petitioners should exhausted the forum of Arbitration and Appeal under the ambit of law.](#)

The [Learned Arbitrator Tribunal ,Gaibandha, \(the Learned Joint District Judge 1st Court, Gaibandha\)](#) is hereby directed to dispose the Misc Case being No.07 of 2024 (Arbitration) and Misc Case being No.06 of 2024 in accordance with section 9(1) (ka) of the [আব্রাহাম স্যুটি অধিহণ ও স্যুটি দখলআইন, ২০১৭](#) (the Act no 21 of 2017) with in shortest possible time.

Hence the rule is disposed of with above observation.

Communicate the Judgment and order at once.

Md. Atabullah, J:

I agree.